



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Glofcheskie v Racicot, 2025 ONLTB 97099

Date: 2025-12-18

File Number: LTB-L-082767-25

In the matter of: J, 251 CRESTWAY DR
NEPEAN ON K2G0A9

Between: Kevin Patrick Glofcheskie
Nadia Costantina Liberatore

Landlords

And

Shane Racicot

Tenant

Kevin Patrick Glofcheskie and Nadia Costantina Liberatore (the 'Landlords') applied for an order to terminate the tenancy and evict Shane Racicot (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was heard by videoconference on December 15, 2025.

The Landlords and the Tenant attended the hearing. The Tenant requested to speak to Tenant Duty Counsel prior to the start of the proceeding, however Duty Counsel was not available.

Determinations:

Preliminary Issue: The Tenant cannot raise issues under Section 82 of the Act and did not provide timely disclosure

1. At the hearing the Tenant wished to raise issues pursuant to section 82 of the *Residential Tenancies Act, 2006* (the 'Act'). To this end, the Tenant had not provided materials to the LTB nor served the Landlords pursuant to the Board's Rule 19 prior to this hearing.

2. The Landlords objected to the Tenant being permitted to raise any issues under s. 82. The Landlords advised they did not get any materials from the Tenant and submitted it was only during the hearing they were made aware that the Tenant wished to bring up these issues.
3. Section 82 provides a tenant may raise issues which may result in set-off against a Landlord's claims for arrears at an L1 hearing so long as the tenant provides written notice of these issues to the Landlord in advance of the hearing in accordance with the Board's rules or provide a satisfactory explanation why they could not do so.
4. Rule 19.4 of the LTB's Rules provides a tenant's written notice of their section 82 issues must be provided 7 days in advance of the hearing. Where this is not done, the LTB's Rule 19.5 provides a tenant shall not be permitted to raise their issues unless the LTB is satisfied the tenant could not comply with the requirements.
5. Similarly, Rule 19.1 of the LTB's Rules provides that all materials on which a party intends to rely at a hearing must be provided to the other party and the LTB 7 days in advance of the hearing. Rule 19.7 provides, in part, that a party who fails to comply with Rule 19 may not rely on evidence that was not properly disclosed unless ordered otherwise.
6. To comply with the section 82 and disclosure requirements the Tenant had to provide his list of section 82 issues and all materials on which they intended to rely to the Landlords on or before December 8, 2025. This was not done.
7. Absent a satisfactory explanation as to why the Tenant could not have done so, the Tenant is not able to raise his issues under s. 82. Additionally, unless ordered otherwise, the Tenant may not rely on their materials.
8. The Board's records show the Notice of Hearing – which advises parties of their disclosure obligations - and a copy of a s. 82 form was emailed to the Tenant on October 6, 2025. Approximately 2 months prior to the hearing, which the Tenant confirmed receiving.
9. In the above circumstances I am not satisfied the Tenant could not have complied with the Rules. The Tenant had a period of at least 2 months to complete the s. 82 form and provide his materials to the Landlord and LTB. The s. 82 claims and disclosure were ultimately not completed and not served upon the Landlords prior to the hearing.
10. As a result, the Tenant was not permitted to raise any issues under s. 82 of the Act and may not rely on materials he claims to have in his possession. The Tenant remains free to seek legal advice and/or pursue any timely issues that may form the subject of a tenant's application under the Act.

L1 Determination

11. The Landlords served the Tenant with a valid Notice to End Tenancy Early for Nonpayment of Rent (N4 Notice). The Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
12. As of the hearing date, the Tenant was still in possession of the rental unit.
13. The lawful rent is \$1,900.00. It is due on the 1st day of each month. The Tenant argued that the rent was raised without proper notice in September 2023, however from the testimony provided by all parties, it was confirmed that the Tenant had paid this rent for more than 12 months, hence the lawful rent is in fact \$1,900.00 pursuant to Act.
14. Based on the Monthly rent, the daily rent/compensation is \$62.47. This amount is calculated as follows: \$1,900.00 x 12, divided by 365 days.
15. The Tenant has not made any payments since the application was filed.
16. The rent arrears owing to December 31, 2025 are \$7,878.73.
17. The Landlords incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
18. The Landlords collected a rent deposit of \$1,850.00 from the Tenant and this deposit is still being held by the Landlords. The rent deposit can only be applied to the last rental period of the tenancy if the tenancy is terminated.
19. Interest on the rent deposit, in the amount of \$120.63 is owing to the Tenant for the period from May 8, 2023 to December 15, 2025.
20. The Tenant submitted the Landlords were in serious breach of their obligations such that eviction must be denied under s. 83(3)(a) of the Residential Tenancies Act, 2006 (the 'Act').
21. The Tenant asserted that the ongoing issues with lack of Air Conditioning Unit functioning.
22. The Landlords testified that this was not the case, and the Landlords acted swiftly and corrected the problem on a temporary basis, while they are awaiting parts for the unit. Moreover, that it is currently winter season.
23. While this issue might be the subject of an application to the LTB by the Tenant, I am not satisfied on the evidence before me that the Tenant has established that they rise to the level of a serious breach. I make this finding only in relation to section 83(3)(a) of the Act, and this order should not be taken to preclude the Tenant from bringing an application should he still have time under the Act's statutory deadline.

24. The eviction is not denied as a result of a serious breach contemplated pursuant to section 83(3)(a) of the Act.
25. I have also considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would not be unfair to postpone the eviction until January 31, 2026, pursuant to subsection 83(1)(b) of the Act. This extension of time accounts for both parties' evidence in relation to their financial circumstances.
26. The Landlords submitted that the parties have attempted to work out a payment plan to no avail, since the application was filed. The Tenant's evidence in relation to entering a payment plan illustrated that a payment plan would not be viable given the Tenant's current life circumstances, employment, income sources and monthly expenses. The Tenant would have difficulty covering the monthly rent, her other expenses, let alone the arrears, in my opinion. Moreover, the Tenant advised he was looking to end the tenancy but required two months to sort out his new living arrangements.
27. The Tenant testified to the impact an early eviction would have on him. The Tenant also testified to the financial challenges looking for a new home would bring.
28. In response to questioning from the Board, the Landlords explained that any further delay in granting the application would be financial prejudicial to the Landlords, and that the Landlords relied on rent to pay expenses related to the rental unit.
29. Considering all of the evidence and, notwithstanding the Landlords may face some financial prejudice, I find that, pursuant to subsection 83(1)(b) of the Act that it would not be unfair to the Landlords to delay the eviction until January 31, 2026, due to the significant impact an early eviction would have on the Tenant.
30. Given the Tenant's personal and financial circumstances, I am satisfied that he may experience challenges securing housing that fits his needs such that more time is required. By contrast, the Landlords, while I acknowledge may face further financial prejudice, the Landlords are holding the last month's rent deposit and after considering the totality of the circumstances I conclude that delaying eviction to January 31, 2026, is fair and appropriate.
31. The extension of time will provide the Tenant time to secure his future income sources/funds to pay the arrears or to find a new place to live for himself.

It is ordered that:

1. The tenancy between the Landlords and the Tenant is terminated unless the Tenant voids this order.

2. The Tenant may void this order and continue the tenancy by paying to the Landlords or to the LTB in trust:

- \$8,064.73 if the payment is made on or before December 31, 2025. See Schedule 1 for the calculation of the amount owing.

OR

- \$9,964.73 if the payment is made on or before January 31, 2026. See Schedule 1 for the calculation of the amount owing.
3. The Tenant may also make a motion at the LTB to void this order under section 74(11) of the Act, if the Tenant has paid the full amount owing as ordered plus any additional rent that became due after January 31, 2026 but before the Court Enforcement Office (Sheriff) enforces the eviction. The Tenant may only make this motion once during the tenancy.
4. **If the Tenant does not pay the amount required to void this order the Tenant must move out of the rental unit on or before January 31, 2026.**
5. If the Tenant does not void the order, the Tenant shall pay to the Landlords \$5,131.15. This amount includes rent arrears owing up to the date of the hearing and the cost of filing the application. The rent deposit and interest the Landlords owes on the rent deposit are deducted from the amount owing by the Tenant. See Schedule 1 for the calculation of the amount owing.
6. The Tenant shall also pay the Landlords compensation of \$62.47 per day for the use of the unit starting December 16, 2025 until the date the Tenant moves out of the unit.
7. If the Tenant does not pay the Landlords the full amount owing on or before January 31, 2026, the Tenant will start to owe interest. This will be simple interest calculated from February 1, 2026 at 4.00% annually on the balance outstanding.
8. If the unit is not vacated on or before January 31, 2026, then starting February 1, 2026, the Landlords may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
9. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlords on or after February 1, 2026.

December 18, 2025

Date Issued

Panagiotis P. Roupas

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction expires on August 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.

Schedule 1
SUMMARY OF CALCULATIONS

A. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before December 31, 2025

Rent Owing To December 31, 2025	\$7,878.73
Application Filing Fee	\$186.00
Total the Tenant must pay to continue the tenancy	\$8,064.73

B. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before January 31, 2026

Rent Owing To January 31, 2026	\$9,778.73
Application Filing Fee	\$186.00
Total the Tenant must pay to continue the tenancy	\$9,964.73

C. Amount the Tenant must pay if the tenancy is terminated

Rent Owing To Hearing Date	\$6,915.78
Application Filing Fee	\$186.00
Less the amount of the last month's rent deposit	- \$1,850.00
Less the amount of the interest on the last month's rent deposit	- \$120.63
Total amount owing to the Landlords	\$5,131.15
Plus daily compensation owing for each day of occupation starting December 16, 2025	\$62.47 (per day)
**Ongoing daily compensation continues to accumulate until the total amount owing (excluding costs) is \$50,000.00.	